

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kimberly Eldridge	Team: Team # 6	CCRB Case #: 200703619	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/13/2007 9:15 PM	Location of Incident: in the vicinity of § 87(2)(b)	18 Mo. SOL 9/13/2008	Precinct: 46		
Date/Time CV Reported Thu, 03/15/2007 10:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/15/2007 10:53 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jaime Pedraza	21301	935479	046 PCT
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kurt Maier	01218	935228	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza stopped § 87(2)(b)	A . Exonerated
B . Officers	Abuse: Officers stopped § 87(2)(b)	B . Alleged Victim Uncooperative
C . Officers	Abuse: Officers stopped § 87(2)(b)	C . Alleged Victim Uncooperative
D . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza frisked § 87(2)(b)	D . Exonerated
E . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza searched § 87(2)(b)	E . Exonerated
F . Officers	Abuse: Officers frisked § 87(2)(b)	F . Alleged Victim Uncooperative
G . Officers	Abuse: Officers frisked § 87(2)(b)	G . Alleged Victim Uncooperative
H . Officers	Abuse: Officers searched § 87(2)(b)	H . Alleged Victim Uncooperative
I . Officers	Abuse: Officers searched § 87(2)(b)	I . Alleged Victim Uncooperative

Synopsis

On March 13, 2007, at approximately 9:15PM, § 87(2)(b) and two of his friends, § 87(2)(b) and § 87(2)(b) (last name § 87(2)(b)) were drinking beer in a park that is in the vicinity of § 87(2)(b) in the Bronx. At that time, a beige, unmarked car slowly drove past the park. The beige car then backed up and came to a stop at the curb near the spot where § 87(2)(b) and his friends were standing. Officer Jaime Pedraza, Officer Kurt Maier, and an unidentified officer exited the vehicle, and approached § 87(2)(b) and his friends (Allegations A, B, and C). Officer Pedraza stated that he wanted to search § 87(2)(b). The officers told § 87(2)(b) and his friends to walk towards the wall, face the wall, and put their hands on it. Officer Pedraza proceeded to frisk and search § 87(2)(b) (Allegations D and E). One of the officers (not Officer Pedraza) frisked and searched § 87(2)(b) while the other officer frisked and searched § 87(2)(b) (Allegations F, G, H, and I). The officers let § 87(2)(b) and § 87(2)(b) leave without being arrested or issued summonses. Officer Pedraza issued § 87(2)(b) a C-Summons for having an open container of alcohol, and arrested him for criminal possession of marijuana. § 87(2)(g) it is recommended that Allegations A, D, and E be exonerated, and allegations B, C, F, G, H, and I be closed as victim uncooperative.

Summary of Complaint

Victim Statement: § 87(2)(b)

On March 15, 2007, § 87(2)(b) called the CCRB and filed a complaint on behalf of her son, § 87(2)(b) (enc. 9A-C). On March 22, 2007, § 87(2)(b) provided a brief telephone statement (enc. 10), and on April 4, 2007, § 87(2)(b) was interviewed in person at the CCRB (enc.11A-D). § 87(2)(b) is a § 87(2)(b) Black male, who is approximately § 87(2)(b), and weighs § 87(2)(b).

On the night of March 13, 2007, at approximately 9:15PM, § 87(2)(b) was standing in a small park that is located between an apartment building at § 87(2)(b) and a garage at § 87(2)(b) in the Bronx. He was accompanied by two of his friends, § 87(2)(b) and § 87(2)(b) (last name § 87(2)(b)). In a supplementary phone statement, § 87(2)(b) stated that there is a sign in the middle of the park that states that the park closes after dark (enc. 12). § 87(2)(b) did not recall the specific time that is listed on the sign, but guessed that it was either 8:00PM or 9:00PM. Despite the fact that the park was technically closed, § 87(2)(b) and his friends continued to drink beer and “hang out” in the park. They had been doing so for approximately four to five hours prior to the incident. During that time, § 87(2)(b) had two beers, but stated that he was not intoxicated.

At that time, an unmarked beige car slowly drove past the park. The beige car then backed up and came to a stop at the curb near the spot where § 87(2)(b) and his friends were standing. Officer Jaime Pedraza (whom § 87(2)(b) identified by name) and two other police officers (whom § 87(2)(b) could not identify or provide detailed descriptions of), exited the vehicle and approached § 87(2)(b) and his friends. The officers did not say anything to § 87(2)(b) or either of his friends, but one of the officers began to “search for weapons” by kicking around bags and other litter that was on the ground. Officer Pedraza then stated that he wanted to search § 87(2)(b). Officer Pedraza and the two unidentified officers told § 87(2)(b) and his friends to walk towards the wall of the garage and to face the wall and put their hands on it. § 87(2)(b) and his friends complied. In § 87(2)(b)'s interview statement, he alleged that the two officers who he could not identify then proceeded to frisk and search his friends. The officers did not find anything that they believed to be suspicious. In § 87(2)(b)'s phone statement however, he did not mention that his friends were searched and frisked.

At that point, Officer Pedraza frisked § 87(2)(b) by patting down the outside of his clothes, as well as the tops of his shoes. Officer Pedraza then searched § 87(2)(b)'s pants pockets. In the front pockets of § 87(2)(b)'s pants, Officer Pedraza found § 87(2)(b)'s tax return money, which totaled \$3500 (§ 87(2)(b) had \$2000 in one pocket and \$1500 in the other pocket). § 87(2)(b) did not have anything else in his pockets besides the money. Officer Pedraza placed the money back into § 87(2)(b)'s pockets, and told § 87(2)(b)'s friends to stay where they were, and to not move because he wanted to speak with § 87(2)(b) alone for a few minutes. Officer Pedraza then led § 87(2)(b) over to his vehicle, where he placed § 87(2)(b) in handcuffs. Officer Pedraza then placed § 87(2)(b) in the back of the police vehicle. By this time, the other two officers had gotten back into the vehicle. Officer Pedraza sat in the backseat of the vehicle, next to § 87(2)(b). The officers and § 87(2)(b) then left the scene, leaving § 87(2)(b)'s friends in the park. Even though § 87(2)(b)'s friends were drinking beer in the park as well, neither of them was arrested nor

issued a summons. The officers took § 87(2)(b) to the 46th Precinct. When they arrived at the precinct, Officer Pedraza asked § 87(2)(b) if he knew of any drug dealers who lived in his area. § 87(2)(b) stated that he did not. A few hours after they arrived at the precinct, PO Pedraza issued § 87(2)(b) a summons for having an open container of alcohol in public. PO Pedraza also gave § 87(2)(b) his property voucher, which listed the amount recovered on § 87(2)(b)'s person as \$3162. An officer checked § 87(2)(b)'s warrant status, and found out that § 87(2)(b) had failed to pay a summons that was issued to him in 2005 for having an open container of alcohol in public. When § 87(2)(b) was arraigned, the judge told him that the summons from 2005 would be dismissed. § 87(2)(b) stated that the judge did not mention anything about marijuana. § 87(2)(b) stated that he was not really sure why he was arrested, and he stated that he did not have marijuana in his possession at the time of the incident.

Results of Investigation

Victim Statement: § 87(2)(b)

On March 22, 2007, the investigator contacted § 87(2)(b) via phone (enc. 13). According to § 87(2)(b), he, § 87(2)(b) and two to three other individuals were sitting in a park that is located in the vicinity of § 87(2)(b) in the Bronx. They were drinking beers and “hanging out” when an unmarked, beige Chevrolet pulled up to the curb in front of where they were sitting. Three police officers emerged from the vehicle. The officers asked for the men's IDs, and proceeded to frisk and search him, § 87(2)(b) and another one of their friends, whose name § 87(2)(b) was not willing to provide. One of the officers (identified through the investigation as Officer Jaime Pedraza) then pulled § 87(2)(b) over to the car and handcuffed him. Officer Pedraza then placed § 87(2)(b) in the backseat of the vehicle. Another one of the officers told § 87(2)(b) and the other individual who was frisked and searched, that they should not worry about the beers because they would not be receiving tickets for them. The officer then got into the police vehicle, which drove away.

§ 87(2)(b) was not sure why § 87(2)(b) was arrested. When § 87(2)(b) was arraigned, however, § 87(2)(b) found out that § 87(2)(b) was arrested for possession of marijuana. The arraignment judge, however, stated that the charges were for having an open container of alcohol in public.

When the investigator asked § 87(2)(b) to provide the names of the other individuals in the park, § 87(2)(b) refused. § 87(2)(b) stated that he could not fully participate in the investigation because he did not have time to do so. By the end of the phone statement, § 87(2)(b) was hostile and uncooperative. He stated that he could no longer speak with the investigator and hung up the phone.

Victim Statement: § 87(2)(b) (Last Name § 87(2)(b))

The investigator was not able to obtain a statement from § 87(2)(b). § 87(2)(b) could only provide § 87(2)(b)'s first name and a phone number, and § 87(2)(b) did not wish to provide any information about any of the other men who were in the park. Using the number that § 87(2)(b) provided, the investigator attempted to call § 87(2)(b) five times between March 22, 2007 and May 5, 2007. On at least two occasions, the investigator left messages for § 87(2)(b) but he never called the investigator back.

Subject Officer Statement: Officer Jaime Pedraza

On May 15, 2007, Officer Jaime Pedraza was interviewed at the CCRB (enc. 18A-B). Officer Pedraza is a § 87(2)(b)-old Hispanic male, § 87(2)(b), weighing § 87(2)(b), with brown hair and brown eyes. Officer Pedraza had two memo book entries that are relevant to the incident, “C Summons# § 87(2)(b), § 87(2)(b), § 87(2)(b),” and 2112: § 87(2)(b) 1 under, Det. Diaz [and] Det. Murphy asset forfeiture log# § 87(2)(b).” His relevant memo book entries have been photocopied and placed in the case file (enc. 14A-C). The summons that Officer Pedraza issued to § 87(2)(b) has also been photocopied and placed into the file (enc. 15). Both the arrest report and the UF-61 show that Officer Jaime Pedraza arrested § 87(2)(b) § 87(2)(b) at 9:15PM, in the vicinity of § 87(2)(b) in the Bronx (enc. 16 and 17A-B). They also show that Officer Pedraza issued § 87(2)(b) summons number § 87(2)(b) § 87(2)(b), and that § 87(2)(b) had two clear bags of marijuana in his hand when Officer Pedraza approached him.

On March 13, 2007, Officer Pedraza worked a tour that began at 2:00PM and ended at 10:35PM and was assigned to Special Projects. His assigned partners were Officer Kurt Maier and Officer Valentino, and they were dressed in uniform. They were assigned to RMP § 87(2)(e), § 87(2)(f), which is an unmarked, silver police vehicle. Officer Pedraza did not recall the vehicle make or model, but noted that it was probably a

Lincoln Town car, and it definitely was not an impala. Officer Pedraza also did not recall who was operating the vehicle.

At approximately 9:15PM, Officer Pedraza, Officer Maier, and Officer Valentino were driving past a small park that is located in the vicinity of § 87(2)(b) in the Bronx. The park consists of a playground and a basketball court, with a few bushes and a bench or two. Officer Pedraza did not know if the park was closed at the time, nor did he know if the park generally closes after dark. Officer Pedraza noted that there were several people in the park, but he could not recall how many there were. As he and his partners were driving past the park, Officer Pedraza noticed a man, later identified as § 87(2)(b) drink from an open bottle of beer. Officer Pedraza did not witness any other individuals drinking alcohol in the park, and decided to focus his attention on § 87(2)(b). At that point, Officer Pedraza decided that he and his partners were going to stop and approach § 87(2)(b) so that he could issue him a C summons § 87(2)(b). The operator stopped the car at the curb. Officer Pedraza could not estimate how far the car was from the bench that § 87(2)(b) was sitting on, but stated that they were not very far apart, and the only things between the vehicle and § 87(2)(b) was the sidewalk and a small bush. At this time, Officer Pedraza also noticed that § 87(2)(b) was holding two clear bags of marijuana in his hand. It was at this point that Officer Pedraza deemed § 87(2)(b) to be under arrest. Before Officer Pedraza and his partners approached § 87(2)(b) however, Officer Pedraza decided to wait inside the vehicle for a short while to see if § 87(2)(b) was going to sell the marijuana.

Officer Pedraza did not remember if anyone was at the park with § 87(2)(b) and he stated that while there were people around § 87(2)(b) none of those individuals appeared to be with him exclusively. As such, during the time that they waited, Officer Pedraza did not witness § 87(2)(b) engage in any type of drug related transaction. After a few other individuals left the park, Officer Pedraza and his partners exited the vehicle. Officer Pedraza approached § 87(2)(b). Officer Maier and Officer Valentino approached two other individuals who were in the park, so that § 87(2)(b) would not get nervous and flee. Officer Pedraza asked § 87(2)(b) what he was going to do with the marijuana that he was holding in his hand. § 87(2)(b) stated that he did not smoke marijuana. § 87(2)(b) also stated that he had an additional bag of marijuana in his pocket, but Officer Pedraza did not recall which pocket § 87(2)(b) was referring to. Officer Pedraza then placed § 87(2)(b) in handcuffs. Officer Pedraza proceeded to frisk and search § 87(2)(b). Officer Pedraza frisked and searched § 87(2)(b) because he wanted to make sure that § 87(2)(b) did not possess any weapons or objects that he could use to harm him or his partners during transport. Officer Pedraza did not remember which parts of § 87(2)(b)'s person that he frisked, nor did he remember which of § 87(2)(b)'s pockets he searched. Officer Pedraza noted that while he did not find any weapons on § 87(2)(b)'s person, he did find \$3162 in one of § 87(2)(b)'s pockets. Officer Pedraza did not remember which pocket he found the money in. § 87(2)(b) was concerned about the fate of his money, so Officer Pedraza explained to § 87(2)(b) that because he had not witnessed § 87(2)(b) engaging in any type of drug transaction, he would only charge him with possession of marijuana and not drug sale. As a result, his money would go into asset forfeiture, at which point § 87(2)(b) would receive a receipt for his money and the money would be put into the bank. § 87(2)(b) would eventually be able to reclaim his money. Officer Pedraza then placed § 87(2)(b) into the RMP, and he and his partners transported him to the 46th Precinct.

Officer Pedraza only interacted with § 87(2)(b) as such, he was not fully aware of the nature of the interactions between Officer Maier and Officer Valentino and the two men that they approached. Officer Pedraza speculated that his partners said something to the effect of asking the men to leave the area and to not make a scene because they wanted to clear the area out as much as possible, so that the situation would not escalate. Officer Pedraza did not believe that his partners frisked and/or searched the two individuals, and stated that there was no physical interaction between his partners and the men. Neither Officer Pedraza nor his partners arrested or issued a summons to anyone else besides § 87(2)(b).

Other Officer Statements

§ 87(2)(g)

_____.

Officer/Complainant Histories

Officer Pedraza has never been disciplined pursuant to a CCRB complaint (enc. 5). This is § 87(2)(b)s first and only complaint (enc. 6)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Officer Identification

Officer Jaime Pedraza was identified by § 87(2)(b) who provided Officer Pedraza's name during his CCRB interview (enc. 11A-D). Officer Pedraza confirmed his involvement in the incident during his CCRB interview (enc. 18A-B).

Undisputed Facts

On March 13, 2007, at approximately 9:15PM, § 87(2)(b) and his friends were drinking beer in a park located at § 87(2)(b) in the Bronx. An unmarked police car stopped at the curb near the spot where § 87(2)(b) and his friends were standing. Officer Jaime Pedraza and his partners, Officer Maier and Officer Valentino, exited the vehicle and approached § 87(2)(b) and his friends. Officer Pedraza frisked and searched § 87(2)(b). Officer Pedraza also issued § 87(2)(b) a C-summons § 87(2)(b). Officer Pedraza arrested § 87(2)(b) and charged him § 87(2)(b).

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

Allegation A) Officer Jaime Pedraza stopped § 87(2)(b)

[REDACTED]

[REDACTED] it is

recommended that Allegation A be exonerated.

Allegation D) Officer Jaime Pedraza frisked § 87(2)(b)

Allegation E) Officer Jaime Pedraza searched § 87(2)(b)

[REDACTED] it is recommended that Allegations D and E be exonerated.

Allegation B) Officers stopped § 87(2)(b)

Allegation C) Officers stopped § 87(2)(b)

Allegation F) Officers frisked § 87(2)(b)

Allegation G) Officers frisked § 87(2)(b)

Allegation H) Officers searched § 87(2)(b)

Allegation I) Officers searched § 87(2)(b)

§ 87(2)(b) made allegations that his friends, § 87(2)(b) and § 87(2)(b) were stopped, frisked, and searched by two police officers, whom he could not identify. Officer Pedraza admitted that his partners Officer Valentino and Officer Maier approached two male individuals in the park, but only did so to help keep the situation under control. As previously stated, the investigator attempted to contact both § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that he did not wish to participate in the investigation § 87(2)(b). Even though the investigator attempted to contact § 87(2)(b) five times, he did not return the investigator's calls. Therefore, it is recommended that Allegations B, C, F, G, H, and I be closed as victim uncooperative.

Date: